

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADVOCATE N.N.P.
SARDESAI AT PANAJI, GOA**

In the matter of:

VIKRAM SHAH

...Claimant

V/s.

RIVA TRINDADE & 3 Ors.

...Respondents

**APPLICATION SEEKING LEAVE
TO FILE ADDITIONAL REPLY.**

MAY IT PLEASE THIS HON'BLE TRIBUNAL:

The Respondent Nos. 1, 2 and 3 state and submit as under:

1. Vide Order dated 07.08.2024, passed in Application for Appointment of Arbitrator No. 13/2024, this Arbitral Tribunal was appointed to decide the dispute between the parties arising out of the Agreement styled as the Articles of Association, purportedly entered into between Mr. Pascoal Trindade, the Claimant, and Respondent No. 4 herein.

2. Pursuant to the Order dated 07.08.2024, passed in Application for Appointment of Arbitrator No. 13/2024 and upon the constitution of the present Arbitral Tribunal, the Claimant herein filed his Statement of Claim seeking reliefs more particularly stated at the prayer clause therein.
3. The Respondents have filed their Statement of Defense in the present arbitral proceedings and have been contesting the claims raised by the Claimant. The Claimant herein had filed an application seeking interim measures and reliefs from this Tribunal, which has been objected to and disputed by these Respondents by filing a detailed reply.
4. In the interregnum, these Respondent have obtained copies of statement of accounts and deposition/Affidavit in Evidence filed by the Claimant before the Court of Civil Judge Senior Division at Panaji and other material which were clearly suppressed by the Claimant. These Respondents have already taken out an application to produce the said documents on record before this

Tribunal. Similarly, these Respondents have also moved an application seeking amendment of Statement of Claim in order make appropriate averments qua the same amongst the others.

5. Against such backdrop, the present Application is being filed seeking leave of this Hon'ble Tribunal to file an additional reply to the application seeking interim measures and to bring on record the facts, pleadings and documents which were suppressed from this Tribunal by the Claimant and have become necessary for the proper, complete, and effective adjudication of the disputes arising in the present proceedings.

6. The Respondents submit that the additional reply is primarily intended to bring on records facts which were intentionally suppressed by the Claimant and further to
elaborate, clarify, and particularize the existing defences
concerning the legal effect of the Articles of Association, the
nature and extent of the rights asserted by the Claimant, the

status and rights of Respondent No. 2 as a moiety holder, the effect of the Joint Venture Agreement dated 25.04.2014, and the maintainability of the claims raised in the present proceedings.

7. The Respondents further submit that certain facts and documents relevant to the adjudication of the present dispute have come to their knowledge and possession subsequent to the filing of the Statement of Defense. In particular, the Respondents have recently obtained banking records and statements which disclose material transactions having a direct bearing on the claims raised by the Claimant and the reliefs sought in the present proceedings. The Respondents seek to also place on record the Affidavit in Evidence filed by the Claimant before the Civil Court, which the Claimant had suppressed from this Tribunal wherein the Claimant admitted that the subject properties belonged to these Respondents.

8. The Respondents seek to place the said facts on record by way of additional reply. The documents, averments and material sought to be relied upon now have recently come in possession of the Respondents after the last date of hearing.
9. The Respondents accordingly seek leave to file additional reply annexed hereto and marked as **ANNEXURE A**.
10. The Respondents submit that the necessity to file additional reply has arisen owing to suppression of material and false statements made by the Claimant and same is necessary for determining the real questions in controversy between the parties and for enabling this Hon'ble Tribunal to adjudicate the disputes in a comprehensive and effective manner including application under Section 17 filed by the Claimant.
11. It is a settled position that arbitral tribunals are empowered to permit alteration, amendment and filing of additional replies and/or statement to ensure complete and effective

adjudication of disputes and to avoid multiplicity of proceedings.

12. No prejudice whatsoever shall be caused to the Claimant if the additional reply is permitted to be taken on record. In the event the present Application is allowed, the Claimant shall have full opportunity to file such additional pleadings and material as may be considered necessary in response thereto.
13. On the contrary, refusal of present application would result in material facts and issues having a direct bearing on the adjudication of the present dispute being excluded from consideration, thereby causing serious prejudice to the Respondents.
14. The balance of convenience is overwhelmingly in favour of permitting the present application.
15. That this Hon'ble Tribunal has the necessary and requisite jurisdiction to entertain and adjudicate the present

application. The facts sought to be incorporated are integral to the subject-matter of the dispute and as such, fall well within the scope of its jurisdiction and authority

Therefore, in the light of the above, the Respondents most respectfully pray that this Hon'ble Tribunal be pleased to allow the present application and permit the Respondents file additional reply annexed hereto and marked as **ANNEXURE A**.

Date: 12.06.2026

Place: Panaji, Goa

Respondent No. 1

Respondent No. 2

Respondent No. 3